

Vijayakumar Bedre vs Roopashree on 16 June, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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NC: 2023:KHC:20781-DB

MFA No. 4048 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 16TH DAY OF JUNE, 2023

PRESENT

THE HON'BLE MR JUSTICE ALOK ARADHE

AND

THE HON'BLE MR JUSTICE ANANT RAMANATH HEGDE

MISCELLANEOUS FIRST APPEAL NO. 4048 OF 2017 (FC)

BETWEEN:

VIJAYAKUMAR BEDRE,

S/O B S NAGARAJARAO BEDRE,

AGED ABOUT 47 YEARS,

R/O HOSAMANGE EXTENSION MAIN ROAD,

SHIVAMOGGA CITY - 577201.

...APPELLANT

(BY SRI P N HARISH, ADVOCATE)

AND:

ROOPASHREE,

W/O VIJAYKUMAR BEDRE,

AGED ABOUT 41 YEARS,

R/AT A V VITTAL,

D NO 1968 / 24-25, 1ST MAIN B BLOCK, S S

LAYOUT, DAVANAGERE - 577001.

...RESPONDENT

Digitally signed
by BELUR
RANGADHAMA
NANDINI

Location: HIGH
COURT OF
KARNATAKA

(BY SRI A HANUMANTHAPPA, ADVOCATE)

THIS MFA IS FILED UNDER SECTION 19(1) OF FAMILY COURT ACT, 1984, AGAINST THE JUDGEMENT AND DECREE DATED 10.04.2017 PASSED IN M.C.NO. 182 OF 2015 ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT, SHIVAMOGGA, DISMISSING THE PETITION FILED UNDER SECTION 13(1)(ia) AND (ib) OF THE HINDU MARRIAGE ACT.

THIS APPEAL COMING ON FOR ORDERS THIS DAY, ALOK ARADHE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal has been filed under Section 19(1) of the Family Courts Act, 1984 against the judgment dated 10.04.2017 passed in M.C.No.182/2015 by which the petition filed by the appellant/husband under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage has been dismissed.

2. Learned counsel for the parties jointly submit that the dispute between the parties has been amicably resolved.

Learned counsels have invited the attention of this Court to the report submitted by Shivamogga Mediation Centre. The terms and conditions of the compromise reads as under:

1. That our marriage was solemnised on 22.05.1998, at Davanagere according to the Hindu tradition. That due to temperamental differences between the two of us, we are living separately since 2007, and it has been sixteen years now. During this time (16years) both of us have contested several cases in the Court at Davanagere, Shivamogga and also in the Hon'ble High Court.

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2. That we would like to end all our litigations once and for all. As we are unable to live together under one roof anymore, we would like to separate and live according to our wish and will. That both of us have understood the consequences rising therefrom and have conceded for a peaceful separation by the way of mutual consent for divorce.

3. That we both are mature enough to understand its implications and have fully understood the contents, effects, consequences, terms and conditions, and have now appeared before the Mediation Proceedings on our own from will We further state that neither of us have left any of our belongings; gold ornaments, or Stree Dhan with each other, nor have any claims of any kind on the other in this regard. We both declare to the Hon'ble court that we shall not make any allegations against each other, nor make claims of any kind against each other. That we have by mutual consent and free will agreed for Dissolution of Marriage through Divorce.

4. As a permanent Alimony, Petitioner No. 1, Vijaykumar has agreed to pay a sum of Rs. 20,00,000-00 (Twenty lakhs) to Petitioner No.2 Roopashree. That Rs.13,00,000 (Thirteen lakhs) has already been paid towards the leased house that she is currently residing in. She has agreed to have NC: 2023:KHC:20781-DB received the said lease amount, and that the remaining amount of Rs.7,00,000-00 (Seven lakhs) would be remitted to her before the completion of the lease period

(tenure) of the house i.e., 9th February 2024.

5. That on humanitarian grounds, Petitioner No.1, Vijaykumar has agreed to pay Rs.20,000=00 every month to Ms. Roopashree, Petitioner-2, towards her medical and daily needs during her life-time. By mutual understanding among the Petitioners, Mr.Vijaykumar, Petitioner No.1, is presently paying the sum of Rs.20,000=00 to Ms. Roopashree, the amount being credited to her bank ccount bearing No. 62371901705. IFSC:

SBIN0020846, State Bank of India, Davangere. Roopashree has accepted it with gratitude.

6. Two children (males) born by marriage to the said Petitioners namely.1. Master. Jayanth, 23 years, and 2. Master. Aditya, 21 years were under the custody of their mother, Roopashree as minors. And at present on attaining majority, are under the care and guidance of their father, Mr. Vijaykumar who is their Natural Guardian. That out of love and affection towards these children, Petitioner 1, Mr.Vijaykumar has agreed to provide them with NC: 2023:KHC:20781-DB residential house in their name within the year 2025 for their peaceful living.

7. We, both, have agreed to the said conditions and that in future may no alligate, or file suits against either of the family members in any manner. We will lead our lives accordingly, and have mutually agreed to withdraw all the civil and criminal cases which include the following.

1.CRL.MISC 243/2014 pending before Family Court, Davanagere.

2. W.P.38642/2015 pending before Hon'ble High-Court.

3. O.S.379/2022 pending before 11 ADDL. Civil judge, Shivamogga.

8. We both agree that Breach of any of the Terms of the above agreement by either side shall amount to a contempt of court. There is no confusion, collusion in filling this settlement/joint memo.

3. In view of the aforesaid amicable settlement arrived at between the parties, the marriage performed between the parties on 22.05.1998 is resolved by a decree of divorce and NC: 2023:KHC:20781-DB the appeal is disposed of in terms of the compromise arrived at between the parties.

Sd/-

JUDGE Sd/-

JUDGE BRN